

IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
COMPANIES COURT (ChD)

Claim no: CR-2024-002880



MRS JUSTICE BACON

15 AUGUST 2024

CR-2024-002880

IN THE MATTER OF

ALPHA FINANCIAL MARKETS CONSULTING PLC

AND IN THE MATTER OF THE COMPANIES ACT 2006

ORDER

sanctioning the Scheme of Arrangement

UPON THE ADJOURNED APPLICATION by Part 8 claim form of the above-named Alpha Financial Markets Consulting plc (the "**Company**") (company number 09965297) whose registered office is situated at 60 Gresham Street, London, EC2V 7BB issued on 8 July 2024 (the "**Claim Form**")

AND UPON HEARING Andrew Thornton KC, Counsel for the Company

AND UPON READING the said Claim Form and the evidence

AND UPON Actium Bidco (UK) Limited (company number 15736419) whose registered office is situated at 5 Marble Arch, London, United Kingdom, W1H 7EJ appearing by Andrew Thornton KC, being its Counsel for this purpose, and undertaking to be bound by the Scheme of Arrangement under Part 26 of the Companies Act 2006 hereinafter sanctioned and to execute and do, or procure to be executed and done, all such documents, acts and things as may be necessary or desirable to be executed or done by it for the purpose of giving effect thereto

THIS COURT HEREBY SANCTIONS the Scheme of Arrangement as set forth in the Schedule hereto

AND IT IS ORDERED that a copy hereof be delivered to the Registrar of Companies

SERVICE OF THE ORDER

This Court has provided a sealed copy of this Order to the serving party:

Addleshaw Goddard LLP at 60 Chiswell Street, London, EC1Y 4AG, Solicitors to the Company

MONDAY



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PART IV

THE SCHEME OF ARRANGEMENT

IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
COMPANIES COURT (ChD)

CR-2024-002880

IN THE MATTER OF ALPHA FINANCIAL MARKETS CONSULTING PLC

AND

IN THE MATTER OF THE COMPANIES ACT 2006

SCHEME OF ARRANGEMENT

(under Part 26 of the Companies Act 2006)

Between

ALPHA FINANCIAL MARKETS CONSULTING PLC

and

THE HOLDERS OF THE SCHEME SHARES

(as defined below)

PRELIMINARY

- A. In this Scheme, unless inconsistent with the subject or context, the following expressions bear the following meanings:

Alpha FMC	Alpha Financial Markets Consulting plc, a public limited company incorporated in England and Wales with registered number 09965297;
Alpha FMC Directors	the directors of Alpha FMC;
Alpha FMC Group	Alpha FMC and its subsidiary undertakings from time to time and, where the context permits, each of them;
Alpha FMC Share Plans	means: (i) the Alpha FMC Employee Incentive Plan Part A, originally adopted on 5 October 2017; (ii) the Alpha FMC Employee Incentive Plan Part B, originally adopted on 10 July 2018; (iii) the Alpha FMC Employee Incentive Plan Part C, originally adopted on 10 July 2018; (iv) the Alpha FMC Management Incentive Plan Part A Enterprise Management Incentive Scheme, originally adopted on 5 October 2017; (v) the Alpha FMC Management Incentive Plan Part B Joint Share Ownership Plan originally adopted on 5 October 2017;

	(vi) the Alpha FMC Management Incentive Plan Part C Restricted Stock Unit Plan, originally adopted on 5 October 2017; and
	(vii) the Alpha FMC Management Incentive Plan Part D French Restricted Stock Unit Plan, originally adopted on 5 October 2017,
	each as amended from time to time;
Alpha FMC Shareholders	the holders of Alpha FMC Shares from time to time;
Alpha FMC Shares	the ordinary shares of 0.075 pence each in the capital of Alpha FMC;
Announcement Date	20 June 2024;
Articles	the articles of association of Alpha FMC (as amended from time to time);
Bidco	Actium Bidco (UK) Limited, a company incorporated in England and Wales with registered number 15736419;
Bridgepoint Fund	certain funds managed by Bridgepoint Advisers Limited, a company incorporated in England and Wales with registered number 03220373;
Business Day	a day (other than a Saturday, Sunday, public or bank holiday) on which banks are generally open for business in London;
Certificated form or in certificated form	in relation to a Scheme Share, one which is not in uncertificated form (that is, not in CREST);
Closing Price	the closing price derived from Bloomberg on any particular date;
Code	the City Code on Takeovers and Mergers, as amended from time to time;
Companies Act	the Companies Act 2006, as amended from time to time;
Computershare	a trading name of Computershare Investor Services PLC, Alpha FMC's registrar, of The Pavilions, Bridgwater Road, Bristol BS13 8AE, United Kingdom;
Conditions	the conditions to the implementation of the Acquisition, as set out in Part A of Part III (<i>Conditions to the Implementation of the Scheme and to the Acquisition</i>) of this document;
Court	the High Court of Justice in England and Wales;
Court Meeting	the meeting or meetings of the Scheme Shareholders to be convened by an order of the Court pursuant to Section 896 of the Companies Act for the purpose of considering and, if thought fit, approving the Scheme (with or without amendment approved or imposed by the Court and agreed to by Bidco and Alpha FMC), notice of which is set out in Part IX (<i>Notice of Court Meeting</i>) of this document;
Court Order	the order of the Court sanctioning this Scheme under section 899 of the Companies Act;
CREST	the system for the paperless settlement of trades in securities and the holding of uncertificated securities operated by Euroclear in accordance with the relevant system (as defined in the CREST Regulations) of which Euroclear is the Operator (as defined in the CREST Regulations);
CREST Manual	the CREST Manual published by Euroclear, as amended from time to time;

CREST Regulations	the Uncertificated Securities Regulations 2001 (SI 2001/3755) (including as it forms part of domestic law of the United Kingdom by virtue of the European Union (Withdrawal) Act 2018), as amended from time to time);
Effective	this Scheme having become effective in accordance with its terms;
Effective Date	the date on which this Scheme becomes Effective;
Effective Time	the time on the Effective Date at which this Scheme becomes Effective;
Euroclear	Euroclear UK & International Limited, incorporated in England and Wales with registered number 02878738;
Excluded Shares	any Alpha FMC Shares which are: (i) registered in the name of, or beneficially owned by Bidco or any other member of the Bidco Group; (ii) registered in the name of, or beneficially owned by, any Rolling Manager; or (iii) held by Alpha FMC in treasury, in each case, at the Scheme Record Time;
Last Practicable Date	15 July 2024;
Long Stop Date	20 December 2024 or such later date (if any) as Bidco and Alpha FMC may agree, with the consent of the Panel, and which (if required) the Court may allow;
Panel	the Panel on Takeovers and Mergers;
Registrar of Companies	the registrar of companies in England and Wales;
Rolling Manager	each individual who has adhered to the Rollover and Reinvestment Deed in accordance with its terms;
Rollover and Reinvestment Deed	the rollover and reinvestment deed dated 20 June 2024 and made between Actium Topco (UK) Limited, Actium Midco 1 (UK) Limited, Actium Midco 2 (UK) Limited, Actium Midco 3 (UK) Limited and Actium Bidco (UK) Limited and to which each Rolling Manager has adhered in accordance with its terms on the Announcement Date;
Scheme	this scheme of arrangement under Part 26 of the Companies Act between Alpha FMC and the Scheme Shareholders in its present form or with or subject to any modification, addition or condition which is approved or imposed by the Court (where relevant) and agreed to by Alpha FMC and Bidco;
Scheme Record Time	6:00 p.m. on the Business Day immediately after the Scheme Sanction Hearing or such later time as Bidco and Alpha FMC may agree;
Scheme Sanction Hearing	the hearing of the Court at which the Court Order will be sought, including any adjournments thereof;
Scheme Shareholders	holders of any Scheme Shares at any relevant date or time;
Scheme Shares	the Alpha FMC Shares: (i) in issue at the date of this document; (ii) if any, issued after the date of this document and before the Voting Record Time; and

	(iii) if any, issued at or after the Voting Record Time and before the Scheme Record Time, either on terms that the original or any subsequent holders thereof shall be bound by this Scheme or in respect of which the holders thereof shall have agreed in writing to be bound by this Scheme,
	but, in each case, other than Excluded Shares;
Significant Interest	in relation to an undertaking, a direct or indirect interest of 20 per cent. or more of: (a) the total voting rights conferred by the equity share capital (as defined in section 548 of the Companies Act) of such undertaking; or (b) the relevant partnership interest;
Subsidiary undertaking	shall be construed in accordance with the Companies Act;
Voting Record Time	6:00 p.m. on the day which is two days (excluding any part of a day that is not a Business Day) before the date of the Court Meeting or, if the Court Meeting is adjourned, 6:00 p.m. on the day which is two days (excluding any part of a day which is not a Business Day) before the date of such adjourned meeting;
Wider Bidco Group	Bidco and its parent undertakings and its and such parent undertakings' subsidiary undertakings, the Bridgepoint Fund and their respective associated undertakings, and any other body corporate, partnership, joint venture or person in which Bidco and all such undertakings (aggregating their interests) have a Significant Interest; and
£, Sterling, penny, pence, or p	the lawful currency of the United Kingdom;

and where the context so admits or requires, all references in this document to the singular include the plural and vice versa.

- B. References to clauses, sub-clauses and paragraphs are to clauses, sub-clauses and paragraphs of this Scheme.
- C. Any phrase introduced by the term 'including' or any similar expression is to be construed as illustrative only and does not limit the sense of the words preceding those terms.
- D. The issued share capital of Alpha FMC as at the Last Practicable Date was £91,507.30 divided into 122,009,736 ordinary shares of 0.075 pence each, all of which were credited as fully paid, none of which were held by Alpha FMC in treasury.
- E. Outstanding options and awards to acquire Alpha FMC Shares granted under the Alpha FMC Share Plans may vest or be exercised in connection with the Acquisition, to the extent permitted in accordance with the relevant Alpha FMC Share Plan rules and any other terms on which they were granted. In total 1,949,261 Alpha FMC Shares may be issued in order to satisfy the exercise of options or vesting of awards granted under the Alpha FMC Share Plans.
- F. As at the Last Practicable Date, no member of the Wider Bidco Group holds any Alpha FMC Shares.
- G. Bidco has, subject to the satisfaction or, where capable, waiver of the Conditions, agreed to appear by counsel at the Scheme Sanction Hearing to sanction this Scheme and to undertake to the Court to be bound by the provisions of this Scheme and to execute and do, or procure to be executed and done, all such documents, acts and things as may be necessary or desirable to be executed or done by it to give effect to this Scheme.
- H. References to times are to London time.

1 Transfer of Scheme Shares

- 1.1 Upon and with effect from the Effective Time, Bidco (and/or such nominee(s) of Bidco as it may determine) shall acquire all of the Scheme Shares, fully paid up with full title guarantee, free from all liens, equities, charges, encumbrances, options, rights of pre-emption and any other third party rights or interests whatsoever, and together with all rights or interests of any

nature at the Effective Time or thereafter attaching to or accruing to such Scheme Shares, including, without limitation, voting rights and the right to receive and retain in full (subject to sub-clause 2.2) all dividends and other distributions (if any) declared, made or paid or which becomes payable or any other return of capital (whether made by way of a reduction of share capital or share premium account or otherwise) by Alpha FMC made by reference to a record date on or after the Effective Time in respect of the Scheme Shares.

- 1.2 For the purposes of such acquisition, the Scheme Shares shall be transferred from the Scheme Shareholders to Bidco (and/or such nominee(s) of Bidco as it may determine) by means of a form or forms of transfer or other instrument or instruction of transfer and, to give effect to such transfers, any person may be appointed by Bidco as attorney and/or agent and/or otherwise on behalf of the holder or holders of Scheme Shares concerned, and is authorised as such attorney and/or agent and/or otherwise on behalf of the holder or holders of Scheme Shares concerned, to execute and deliver as transferor a share transfer form or form of transfer or other instrument (by deed or otherwise) or instruction of transfer, or to procure the transfer by means of CREST, of all of the Scheme Shares and every share transfer form, form, instrument or instruction of transfer so executed or instruction so given shall be as effective as if it had been executed or given or procured by the holder or holders of the Scheme Shares thereby transferred. Such form, instrument or instruction of transfer shall be deemed to be the principal instrument of transfer and the equitable or beneficial interest in the Scheme Shares shall only be transferred to Bidco (and/or its nominee(s)), together with the legal interest in such Scheme Shares, pursuant to such form, instrument or instruction of transfer.
- 1.3 Pending the registration of Bidco (or its nominee(s)) as the holder of any Scheme Share to be transferred pursuant to this Scheme in the register of members of Alpha FMC, each Scheme Shareholder irrevocably:
 - (a) appoints Bidco (and/or its nominee(s)), and Bidco (and/or its nominee(s)) shall be empowered upon and with effect from the Effective Time to act, as attorney or, failing that, as agent and/or otherwise on behalf of each holder of any such Scheme Share to exercise on behalf of each Scheme Shareholder (in place of and to the exclusion of the relevant Scheme Shareholder) any voting rights attached to its Scheme Shares and any and all rights and privileges (including the right to receive notice of or requisition the convening of a general meeting of the Alpha FMC or of any class of its shareholders) attaching to its Scheme Shares and to receive any distribution or other benefit accruing or payable in respect thereof;
 - (b) appoints Bidco (and/or its nominee(s)) and any one or more of its directors or agents to sign on behalf of such Scheme Shareholder any documents, and do all such things, as may in the opinion of Bidco and/or any one or more of its directors or agents be necessary or desirable in connection with the exercise of any votes or any other rights or privileges attaching to its Scheme Shares, including, without limitation, an authority as its attorney and/or agent to exercise on its behalf (in place of and to the exclusion of the relevant Scheme Shareholder) any voting rights attached to its Scheme Shares and any or all rights and privileges attaching to the Scheme Shares and for any one or more of its directors or agents to sign any consent to short notice of any general or separate class meeting of Alpha FMC and/or execute a form of proxy in respect of its Scheme Shares appointing any person nominated by Bidco and/or any one or more of its directors or agents to attend any general and separate class meetings of Alpha FMC (or any adjournment thereof) and to exercise or refrain from exercising the votes attaching to the Scheme Shares on such Scheme Shareholder's behalf;
 - (c) authorises Alpha FMC and/or its agents to send any notice, circular, warrant or other document or communication which Alpha FMC may be required to send to such Scheme Shareholder as a member of Alpha FMC in respect of their Scheme Shares (including any share certificate(s) or other document(s) of title issued as a result of conversion of their Scheme Shares into certificated form) to Bidco (and/or its nominee(s)) at its registered office; and

- (d) authorises Bidco (and/or its nominee(s)) to take such action as otherwise sees fit in relation to any dealings with or disposal of such Scheme Shares (or any interest in such Scheme Shares),

such that from the Effective Time, no Scheme Shareholder shall be entitled to exercise any voting rights attached to the Scheme Shares or (subject to sub-clause 2.3) any other rights or privileges attaching to the Scheme Shares without the consent of Bidco and shall not appoint a proxy or representative for or to attend any general meeting, separate class meeting or other meeting of Alpha FMC.

- 1.4 The authorities granted pursuant to sub-clauses 1.2 and 1.3 shall be treated for all purposes as having been granted by deed.

2 Consideration for the transfer of Scheme Shares

- 2.1 In consideration for the transfer of the Scheme Shares to Bidco (and/or such nominee(s) of Bidco as it may determine) referred to in clause 1, Bidco shall, subject as provided below, pay, or procure that there shall be paid, to or for the account of each Scheme Shareholder (as appearing in the register of members of Alpha FMC at the Scheme Record Time) an amount of 505 pence in cash for each Scheme Share held by such Scheme Shareholder at the Scheme Record Time.
- 2.2 Subject to sub-clause 2.4, if any dividend, other distribution or return of capital is authorised, declared, made, paid or becomes payable by Alpha FMC in respect of the Alpha FMC Shares on or after the Announcement Date and before the Effective Date, Bidco will reduce the consideration per Scheme Share (as set out in sub-clause 2.1) by an amount equal to the amount of such dividend and/or distribution and/or return of capital (as the case may be), except where the Scheme Share is, or will be, acquired pursuant to the Scheme on a basis which entitles Bidco to receive such dividend, distribution or other return of capital (as the case may be) and to retain it.
- 2.3 If Bidco reduces the consideration payable per Scheme Share by an amount equal to the amount of a dividend and/or distribution and/or return of capital (as the case may be) in accordance with sub-clause 2.2, then: (a) Scheme Shareholders shall be entitled to receive and retain that dividend, other distribution or return of capital in respect of the Scheme Shares they hold; (b) any reference in this Scheme to the consideration payable under the Scheme shall be deemed to be a reference to the consideration as so reduced; and (c) the exercise of such rights shall not be regarded as constituting any revision or variation of the terms of this Scheme.
- 2.4 If and to the extent that any such dividend, other distribution or return of capital is authorised, declared, made or paid and it is cancelled prior to the Effective Date, the consideration payable under the Scheme shall not be subject to change under sub-clause 2.2.

3 Share certificates and cancellation of CREST entitlements

With effect from, or as soon as possible after, the Effective Time:

- 3.1 all certificates representing Scheme Shares shall cease to have effect as documents of title to the Scheme Shares comprised in the certificates and every holder of Scheme Shares shall be bound, at the request of Alpha FMC, to deliver up the same to Alpha FMC (or any person appointed by Alpha FMC to receive them), or, as it may direct, to destroy the same;
- 3.2 Alpha FMC shall procure that entitlements to Scheme Shares held within CREST are disabled and Euroclear is instructed to cancel or transfer the entitlements of Scheme Shareholders to Scheme Shares in uncertificated form;
- 3.3 following the cancellation of the entitlements to Scheme Shares of holders of Scheme Shares in uncertificated form, Alpha FMC's registrar, Computershare, shall be authorised to re-materialise entitlements to such Scheme Shares; and
- 3.4 subject to the due execution and completion, delivery and, if applicable, stamping of any form of transfer or other instrument or instruction of transfer as may be required in accordance with sub-clause 1.2 above, Alpha FMC will make, or procure to be made, appropriate entries in its

register of members to reflect the transfer of Scheme Shares to Bidco (and/or its nominee(s)) in accordance with clause 1 and Alpha FMC shall comply with its obligations in this respect..

4 Despatch of consideration

- 4.1 As soon as practicable after the Effective Date, and in any event no later than 14 days after the Effective Date (or such other period as may be agreed between Alpha FMC and Bidco and approved by the Panel), Bidco shall, subject to sub-clause 4.2:
- (a) in the case of Scheme Shares which at the Scheme Record Time are in certificated form, despatch, or procure to be despatched, to the persons entitled to such Scheme Shares (or as they may direct) in accordance with the provisions of sub-clauses 4.3 and 4.4, cheques for the sums payable to them respectively in accordance with clause 2; and
 - (b) in the case of Scheme Shares which at the Scheme Record Time are in uncertificated form, procure that Euroclear is instructed to create an assured payment obligation in favour of the appropriate payment bank of the persons entitled to the sums payable in accordance with clause 2 and in accordance with the CREST assured payment arrangements (as set out in the CREST Manual), provided that Bidco shall be entitled to make payment of the consideration by cheque as aforesaid in sub-clause 4.1(a) if, for any reason, it wishes to do so or if, for any reason, it is not able to effect settlement in accordance with this sub-clause 4.1(b).
- 4.2 In the case of Scheme Shares acquired following the sanction of the Scheme pursuant to the vesting of awards or the exercise of options granted under the Alpha FMC Share Plans, settlement of the consideration payable to Alpha FMC Share Plan participants under the Scheme or the Articles may be made by cheque through payroll (net of any exercise price, income tax and employee National Insurance contributions) (or its overseas equivalent) and any other applicable tax which Alpha FMC or any member of the Alpha FMC Group is required to account to the relevant tax authority or is permitted to deduct by law and under the terms of the Alpha FMC Share Plan), or in such other manner as Alpha may determine, in accordance with the proposals being made to the Alpha FMC Share Plan participants.
- 4.3 All deliveries of cheques required to be made pursuant to this Scheme shall be effected by sending the same by first class post (or by international standard post, if overseas) in pre-paid envelopes addressed to the persons entitled to them at their respective registered addresses as appearing in the register of members of Alpha FMC at the Scheme Record Time (or in the case of any joint holders, at the address of the joint holder whose name stands first in the register of members of Alpha FMC in respect of such joint holding at the Scheme Record Time) and none of Alpha FMC, Bidco, any member of the Wider Bidco Group and their respective parent undertakings, or their respective agents or nominees or Alpha FMC's registrar, Computershare, shall be responsible for any loss or delay in the transmission of any cheques sent in accordance with this sub-clause 4.3 which shall be sent at the risk of the person or persons entitled to them.
- 4.4 All cheques shall be in Sterling drawn on a UK clearing bank and shall be made payable to the Scheme Shareholder concerned or, in the case of joint holders, the joint holder whose name stands first in the register of members of Alpha FMC in respect of such joint holding at the Scheme Record Time to whom, in accordance with the foregoing provisions of this clause 4, the envelope containing the same is addressed (save that, in the case of joint holders, Bidco reserves the right to make the cheque payable to all joint holders), and the encashment of any such cheque shall be a complete discharge of Bidco's obligation under this Scheme to pay the monies represented thereby.
- 4.5 If any Scheme Shareholders have not encashed the cheques within six months of the Effective Date, Bidco and Alpha FMC shall procure that the cash consideration due to such Scheme Shareholders under this Scheme shall be held on trust for such Scheme Shareholders for a period of 12 years from the Effective Date, and such Scheme Shareholders may (subject to the legal requirements of any jurisdiction relevant to such Scheme Shareholders) claim the consideration due to them (plus any interest accrued thereon, but net of any expenses and taxes) by written notice to Alpha FMC in a form and with such evidence which Alpha FMC determines evidences their entitlement to such consideration, at any time during the period of 12 years from the Effective Date.

- 4.6 In respect of payments made through CREST, Bidco shall procure that Euroclear is instructed to create an assured payment obligation in accordance with the CREST assured payment arrangements. The creation of such an appropriate assured payment obligation as set out in sub-clause 4.1(b) shall be a complete discharge of Bidco's obligation under this Scheme with reference to payments made through CREST.
- 4.7 The preceding paragraphs of this clause 4 shall take effect subject to any prohibition or condition imposed by law.

5 Mandates

Each mandate (including, without limitation, relating to the payment of dividends on any Scheme Shares) and other instructions (including communication preferences) given to Alpha FMC by a Scheme Shareholder in force at the Scheme Record Time relating to Scheme Shares shall, as from the Effective Date, cease to be valid.

6 Operation of this Scheme

- 6.1 This Scheme shall become Effective upon a copy of the Court Order being delivered to the Registrar of Companies for registration.
- 6.2 Unless this Scheme has become Effective on or before 11.59 p.m. on the Long Stop Date, or such later time and date (if any) as Bidco and Alpha FMC may agree and (if required) the Panel may allow, this Scheme shall never become Effective.

7 Modification

Alpha FMC and Bidco may jointly consent on behalf of all persons concerned to any modification of, or addition to, this Scheme or to any condition which the Court may approve or impose. Any such modification or addition shall require the consent of the Panel where such consent is required under the Code. For the avoidance of doubt, no modification may be made to the Scheme once it has taken effect.

8 Governing law

This Scheme and all rights and obligations arising from it are governed by English law. Any dispute of any kind whatsoever arising directly or indirectly as a result of or in connection with this Scheme initiated by Alpha FMC, Bidco, any present or future shareholder of Alpha FMC, or any director of Alpha FMC or Bidco, irrespective of the causes of action, including whether based on contract or tort, shall be exclusively submitted to the courts of England and Wales.

Dated: 16 July 2024